

DUTY TO REPORT CHILD OR STUDENT ABUSE AND NEGLECT

The Loudoun County School Board is committed to an environment that protects and supports the well-being of all students.

Pursuant to Va. Code § 63.2-1509 et seq., and Va. Code § 63.2-1606, any employee, who, in their professional or official capacity, knows, or has reasonable suspicion that a child or student is the subject of abuse or neglect, or exploitation if a student is 18 years old or over, shall report such knowledge or reasonable suspicion immediately (i.e., as soon as possible, but not longer than 24 hours after having reason to suspect a reportable offense of child abuse or neglect) in accordance with Section A.1 of this policy.

Failure to report may result in disciplinary action, up to, and including, termination.

A. Reporting Requirements. The standard for what constitutes an abused or neglected child is stated in Va. Code § 63.2-100, which provides that an abused or neglected child is one, “whose parents or other person responsible for their care creates or inflicts, threatens to create or inflict, or allows to be created or inflicted upon such child a physical or mental injury by other than accidental means.

1. Any teacher or other school employee who has reason to suspect abuse, neglect, or exploitation of a child or student shall immediately report it to:

- a. The principal or designee (such as an assistant principal, counselor, social worker, etc.) or supervisor of the department, who shall make such report forthwith. The principal or designee or supervisor of the department, who makes the report to the local or state agencies (i.e., CPS, and/or APS, as applicable) must notify the person making the initial report when the report of the suspected abuse or neglect is made and of the name of the individual receiving the report. That reporting party must forward any communication resulting from the report, including any information about any actions taken regarding the report, to the person who made the initial report.
- b. The initial report should be an oral report submitted directly to Child Protective Services (CPS), or Adult Protective Services (APS), if the student is over 18.
 - i. During business hours, contact The Loudoun County Department of Health and Human Services at (703) 771-KIDS (5437) for CPS, and (703) 777-0437 for APS.
 - ii. After hours and on the weekend, call the Virginia Department of

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Social Services 24-hour hotline at (800) 552-7096 for CPS or (888) 832-3858 for APS.

- c. The principal or designee shall then submit such report, in writing, via the Loudoun County Public Schools (LCPS) online CPS reporting portal.

2. If any principal is suspected of abuse or neglect of a child or student, the school employee who has this suspicion shall report it to the Superintendent or designee, who shall report it to the local or state agencies (i.e., CPS, and, if applicable, APS).

3. Reports of reasonable suspicion that a student, who is 18 and older, is the subject of abuse or neglect shall be reported immediately, in accordance with this policy, to CPS, and also to APS, regardless of the student's intellectual ability

4. In accordance with School Board Policy 7542 (Required Notification and Consequences of Criminal Charges, Convictions, and Pleas and Department of Social Services Investigations or Dispositions for Employees), any employee who is the subject of a CPS and/or APS investigation into an allegation of child abuse or neglect must notify the Superintendent or designee of the investigation.

- a. Written notification from the employee shall be provided to the Superintendent or the Superintendent's Designee no later than the first working day following the date the employee became aware of the CPS and/or APS investigation, or as soon as practical in extenuating circumstances.

B. Example of Employee Behavior to Report. Principals or designees or department supervisors shall report the following alleged or observed employee behaviors to an administrator in the Department of Human Resources and Talent Development (HRTD) in addition to appropriate reporting to law enforcement, if they have reason to believe a crime may have been committed, and to CPS and/or APS in accordance with this policy. Reporting to HRTD shall occur as soon as possible, but within one workday of becoming aware of the allegations. Allegations or observed behaviors to report include, but are not limited to, the following:

1. Allegations of employee sexual misconduct with a student;
2. Allegations of an employee using physical force or making a threat of physical harm to a student;

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3. Allegations of an employee inflicting mental abuse or neglect, as defined in the Virginia Administrative Code, on a student, or making a threat of mental abuse or neglect to a student; and
4. Employee behavior that includes, but is not limited to, the following:
 - a. Sexual or romantic invitations to students;
 - b. Dating students or soliciting dates with students;
 - c. Engaging in sexualized dialogue with students;
 - d. Making suggestive comments to students or in the known presence of students;
 - e. Physical exposure of a sexual, romantic, or erotic nature;
 - f. Self-disclosure of a sexual or erotic nature to students or in the known presence of students; and
 - g. Sexual contact or inappropriate overtures to students, whether they be physical, verbal, non-verbal, written, or electronic.

C. Administrators' Responsibilities

1. The principal or designee or department supervisor shall report the suspected abuse or neglect by a non-LCPS employee to the local or state department of social services. Upon making such a report, they should also inform the proper Department of Instruction and Department of Pupil Services designees.
2. If any LCPS employee is suspected of abuse or neglect of a child or student, the principal or designee or department supervisor shall report it to the proper HRTD designee and to the local or state department of social services.
3. The principal or designee or department supervisor is responsible for ensuring that all personnel are fully informed of their responsibilities under the law and the procedures of this policy.
4. Notice of the duty to report suspected child abuse or neglect shall be posted in each school pursuant to Va. Code § 22.1-291.3. The notice of the duty to report posting shall state that:
 - a. Any teacher or other person employed in a public or private school who has reason to suspect that a child is an abused or neglected

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child, including any child who may be abandoned, is required to report such suspected cases of child abuse or neglect to local or state social services agencies or the person in charge of the relevant school or his designee; and

- b. All persons required to report cases of suspected child abuse or neglect are immune from civil or criminal liability or administrative penalty or sanction on account of such reports unless such person has acted in bad faith or with malicious purpose. The notice shall also include the Virginia Department of Social Services' toll-free child abuse and neglect hotline.

D. Records. The principal or designee or department supervisor shall, upon request, make available to the CPS/APS worker any school records or reports that document the basis of the report. The Federal Educational Rights and Privacy Act of 1974 (FERPA) prohibits the sharing of student information without explicit parental or eligible student consent unless the CPS/APS worker has a court order to review the record—or unless release without parental consent would not violate FERPA. For instance, in a health or safety emergency situation, the school or department could provide access to the record. The school principal or department supervisor will determine what constitutes an emergency in accordance with School Board Policy 8640 (Disclosure of Student Personally Identifiable Information).

E. Consequences of Non-Compliance with Reporting Procedures. Any employee who fails to comply with the reporting requirements for child abuse and neglect may be subject to disciplinary action, up to, and including, termination. In addition, Virginia law provides that any person required to file a report regarding suspected child abuse or neglect who fails to do so within in 24 hours may be convicted of a Class 1 Misdemeanor and fined accordingly.

F. Memorandum of Understanding with Child Protective Services. A written interagency agreement between the Loudoun County Health and Human Services and the School Board shall be adopted as a protocol for investigating child abuse and neglect reports, including reports of sexual abuse of a student.

[Former Policy 8-55]

Adopted: 5/10/77

Revised: 7/10/84, 6/22/93, 12/08/15, 11/28/17

Current Revision: 4/25/23

Legal Refs: Code of Virginia § 22.1-291.3, 63.2-100, 63.2-1509, 63.2-1511, 63.2-1605, 63.2-1606, 20 U.S.C. § 1232g, 22 VAC 40-705-30

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Cross Refs: Policy [8640](#), Disclosure of Personally Identifiable Information; Policy [7542](#), Required Notification and Consequences of Criminal Charges, Convictions, and Pleas and Department of Social Services Investigations or Dispositions for Employees